

Manju Mehla vs Sonu Kumar on 18 May, 2026

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IN THE HIGH COURT OF DELHI AT NEW DELHI

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Date of Decision: 18.05.2026

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MAT.APP.(F.C.) 144/2025

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.....Appella

Through: Mr. Zeeshan Diwan, Mr.
Krishna Datta Multani, Ms.
Harsha & Ms. Ankita Yadav,
Advs.

versus

Y

.....Respondent

Through: Mr. Sunil Kumar & Mr. Anil
Kumar, Advs.

CORAM:

HON'BLE MR. JUSTICE VIVEK CHAUDHARY

HON'BLE MS. JUSTICE RENU BHATNAGAR

JUDGMENT

CM APPL.22644/2025 (for condonation of delay of 74 days in filing the appeal)

1. The present application has been filed under Section 5 of the Limitation Act, 1963, seeking condonation of delay in filing the captioned appeal.

2. Learned counsel for the respondent submits that he has no objection if the delay is condoned.

3. In view of the submissions made and the reasons stated in the application, the delay of 74 days in filing the appeal is condoned.

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4. The application stands disposed of.

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5. The present appeal under Section 19 of the Family Courts Act, 1984, assails the Judgment and Decree dated 21.12.2024, passed by the learned Family Court in HMA No. 1771 of 2019, whereby the petition of the Appellant seeking annulment of marriage under Section 12(1)(c) of the Hindu Marriage Act, 1955 was dismissed.

6. Briefly stated, the case of the Appellant before the learned Family Court was that the Respondent emotionally manipulated and coerced her into the alleged marriage by extending threats of suicide

and by making false representations regarding his age, background and financial status. According to the Appellant, on 16.01.2019, the Respondent took her to Tis Hazari Courts and thereafter to an alleged Arya Samaj Mandir, where only exchange of garlands took place and no essential Hindu marriage ceremonies, including Saptapadi were performed in accordance with law.

7. It was further the Appellant's case that the parties never lived together as husband and wife after the alleged marriage and the marriage was never consummated. The Appellant also alleged that thereafter the Respondent continued to harass and threaten her and her family members, including by circulating photographs on social media and demanding money for agreeing to annulment of marriage, compelling the Appellant to lodge police complaints in September 2019.

8. In these circumstances, the Appellant instituted a Petition under Section 12(1)(c) of the Hindu Marriage Act, 1955 seeking annulment MAT.APP.(F.C.) 144/2025 15:20:36 of marriage on the grounds of fraud, coercion and misrepresentation. The Appellant additionally pleaded that the alleged marriage had not been solemnized in accordance with the essential ceremonies required under Hindu law and that the Respondent was below the statutory marriageable age at the relevant time.

9. During the course of proceedings, the Appellant led her evidence and was duly cross-examined. Though the Respondent filed his Written Statement and tendered examination-in-chief, he repeatedly failed to appear for cross-examination despite opportunities being granted. Consequently, vide order dated 20.02.2024, the learned Family Court closed the Respondent's evidence.

10. The learned Family Court passed the Impugned Judgment dated 21.12.2024. Aggrieved thereby, the Appellant has preferred the present Appeal.

11. During the pendency of the present Appeal, the parties were referred to the Delhi High Court Mediation and Conciliation Centre vide order dated 03.02.2026 to explore the possibility of an amicable settlement of their disputes. Thereafter, with the intervention of the learned Mediator and after several rounds of discussions, the parties arrived at a Settlement Agreement dated 16.04.2026, which has been placed on record.

12. In the said settlement, both parties acknowledged that they had never voluntarily performed the essential ceremonies required for a valid Hindu marriage, including Saptapadi and other customary rites, and that the alleged marriage had not been solemnized in accordance with the mandatory requirements of the Hindu Marriage Act, 1955.

MAT.APP.(F.C.) 144/2025 15:20:36 The parties further agreed that they had been living separately for several years without cohabitation or performance of any marital obligations and, in order to put a quietus to all disputes and move forward in their respective lives, mutually resolved to seek annulment of the alleged marriage before this Court.

13. We have heard the learned counsel for the parties and perused the material placed on record.

14. By way of the impugned Judgment and Decree dated 21.12.2024 passed in HMA No. 1771/2019, the learned Family Court dismissed the petition filed by the Appellant under Section 12(1)(c) of the Hindu Marriage Act, 1955 seeking annulment of marriage, holding that the Appellant had failed to establish that her consent for the marriage was obtained by force, coercion or fraud. The learned Family Court further held that the allegations regarding threats, blackmail, false representations concerning the Respondent's age, occupation and financial status, as well as the plea regarding non-performance of essential marriage ceremonies, had not been proved. The learned Family Court further found that the marriage solemnized through Arya Samaj rites constituted a valid Hindu marriage and consequently declined the relief of nullity sought by the Appellant.

15. The Impugned Judgment and Decree has been assailed by the Appellant, inter alia, on the ground that the learned Family Court failed to appreciate that the alleged marriage between the parties was procured by fraud, coercion and misrepresentation and was not solemnized in accordance with the essential ceremonies required under Hindu law. It has been contended that despite the Respondent MAT.APP.(F.C.) 144/2025 15:20:36 having failed to subject himself to cross-examination and despite the learned Family Court itself recording that his evidence could not be read in evidence, the learned Family Court erroneously proceeded to rely upon the defence taken in the Written Statement while dismissing the Petition under Section 12(1)(c) of the Hindu Marriage Act, 1955. The Appellant further submits that the learned Family Court failed to draw an adverse inference against the Respondent for not entering the witness box for cross-examination and also failed to appreciate that the parties never cohabited as husband and wife and that no valid solemnization of marriage in accordance with Section 7 of the Hindu Marriage Act, 1955 had taken place.

16. Furthermore, learned counsel appearing for both the parties submitted that during the pendency of the present Appeal, the parties have amicably resolved all their disputes before the Delhi High Court Mediation and Conciliation Centre and have entered into a Settlement Agreement dated 16.04.2026. It has been jointly submitted that in view of the subsequent settlement arrived at between the parties, wherein both parties have acknowledged that the essential ceremonies of a valid Hindu marriage were never voluntarily performed, the alleged marriage between the parties be annulled and appropriate orders be passed by this Court in terms of the settlement.

17. The principal question that arises for consideration in the present Appeal is whether, in the facts and circumstances of the case, the alleged marriage between the parties can be regarded as a validly solemnized Hindu marriage in the eyes of law and whether the Appellant had succeeded in establishing grounds warranting MAT.APP.(F.C.) 144/2025 15:20:36 annulment under Section 12(1)(c) of the Hindu Marriage Act, 1955.

18. Before advertng to the rival submissions advanced on behalf of the parties, it is apposite to refer to the relevant statutory provisions governing the present controversy.

19. Section 5 of the Hindu Marriage Act, 1955 prescribes the conditions for a Hindu marriage and reads as under:

"5. Conditions for a Hindu marriage. -- A marriage may be solemnized between any two Hindus, if the following conditions are fulfilled, namely: --

(i) neither party has a spouse living at the time of the marriage;

(ii) ...

(iii) the bridegroom has completed the age of twenty-one years and the bride the age of eighteen years at the time of the marriage;

..."

20. Furthermore, section 7 of the Hindu Marriage Act, 1955, which deals with ceremonies for a Hindu marriage, reads as under:

"7. Ceremonies for a Hindu marriage.--

(1) A Hindu marriage may be solemnized in accordance with the customary rites and ceremonies of either party thereto. (2) Where such rites and ceremonies include the Saptapadi, that is, the taking of seven steps by the bridegroom and the bride jointly before the sacred fire, the marriage becomes complete and binding when the seventh step is taken."

21. Section 12(1)(c) of the Hindu Marriage Act, 1955 further provides:

"12. Voidable marriages.--

(1) Any marriage solemnized, whether before or after the commencement of this Act, shall be voidable and may be annulled by a decree of nullity on any of the following grounds, namely:--

(c) that the consent of the petitioner ... was obtained by force or by fraud as to the nature of the ceremony or as to any material fact or circumstance concerning the respondent."

22. A conjoint reading of Sections 5, 7 and 12 of the Hindu MAT.APP.(F.C.) 144/2025 15:20:36 Marriage Act, 1955 makes it abundantly clear that a Hindu marriage does not come into existence merely because photographs are taken, garlands are exchanged, or a certificate is issued by an institution claiming to have solemnized the marriage. A valid Hindu marriage must not only satisfy the statutory conditions prescribed under Section 5 but must also be solemnized in accordance with the essential ceremonies and customary rites contained in Section 7 of the Hindu Marriage Act, 1955. Equally, consent for marriage must be free, voluntary and uninfluenced by force, coercion, fraud or misrepresentation. Where the very consent of a party is vitiated or the foundational ceremonies of marriage are absent, the marriage becomes liable to be annulled under Section

12(1)(c) of the Act.

23. The law on the issue is no longer *res integra*. The Supreme Court in *Bhaurao Shankar Lokhande v. State of Maharashtra*, AIR 1965 SC 1564, while dealing with the requirements of a valid Hindu marriage, held that unless the essential ceremonies required by law are duly performed, no valid marriage in the eyes of law comes into existence. The relevant observations read as under:

" 3. ...

If the marriage is not a valid one, according to the law applicable to the parties, no question of its being void by reason of its taking place during the life of the husband or wife of the person marrying arises. If the marriage is not a valid marriage, it is no marriage in the eye of law. The bare fact of a man and a woman living as husband and wife does not, at any rate, normally give them the status of husband and wife even though they may hold themselves out before society as husband and wife and the society treats them as husband and wife."

24. The Supreme Court further emphasized that performance of essential ceremonies is not an empty ritual or a mere technicality but MAT.APP.(F.C.) 144/2025 15:20:36 the very foundation upon which the validity of a Hindu marriage rests. Similarly, in *Priya Bala Ghosh v. Suresh Chandra Ghosh*, (1971) 1 SCC 864, the Supreme Court reiterated that due performance of essential ceremonies, including *Saptapadi* wherever applicable, must be affirmatively proved and in absence thereof, the marriage cannot be treated as validly solemnized under Hindu law.

25. The settled position of law, therefore, is that even a marriage alleged to have been solemnized through *Arya Samaj* rites must satisfy the statutory requirements prescribed under Section 7 of the Hindu Marriage Act, 1955. Mere issuance of a certificate by an *Arya Samaj* institution would not by itself dispense with proof of solemnization in accordance with law.

26. Equally relevant in the facts of the present case are the settled principles governing appreciation of evidence where a party avoids cross-examination. The Delhi High Court in *Geeta Pandey v. Shekar Pandey*, 2016 SCC OnLine Del 5033, held that where a witness fails to appear for cross-examination, his examination-in-chief cannot be read in evidence. The Court observed that testimony which remains untested by cross-examination cannot be relied upon while adjudicating disputed questions of fact.

27. The aforesaid principle assumes considerable significance in the facts of the present case. Though the Respondent had filed his Written Statement and tendered examination-in-chief before the learned Family Court, he repeatedly failed to appear for cross-examination despite several opportunities having been granted. Consequently, vide order dated 20.02.2024, the learned Family Court closed the MAT.APP.(F.C.) 144/2025 15:20:36 Respondent's evidence. Significantly, the said order was never challenged by the Respondent and therefore attained finality.

28. Even the learned Family Court, in the impugned Judgment, observed that the evidence of the Respondent could not be read owing to his failure to subject himself to cross-examination. However, despite recording the aforesaid finding, the learned Family Court proceeded to substantially rely upon the defence taken in the Written Statement while dismissing the Appellant's petition. In the considered opinion of this Court, such an approach is legally unsustainable and contrary to the settled principles governing appreciation of evidence.

29. The record further reveals that the parties admittedly never cohabited together as husband and wife after the alleged ceremony dated 16.01.2019. It has consistently been the case of the Appellant that immediately after the alleged ceremony she returned to her parental home and no marital relationship was ever consummated. The contemporaneous complaints lodged by the Appellant in September 2019 also lend support to her allegations regarding threats, coercion and harassment at the hands of the Respondent.

30. What further assumes significance is that the Respondent failed to produce any independent witness to establish due solemnization of marriage in accordance with Section 7 of the Hindu Marriage Act, 1955. Neither the priest allegedly conducting the ceremony nor any representative from the Arya Samaj institution was examined before the learned Family Court. In the absence of such evidence, and particularly in light of the admitted absence of cohabitation and subsequent conduct of the parties, the learned Family Court ought to MAT.APP.(F.C.) 144/2025 15:20:36 have approached the matter with greater circumspection.

31. During the pendency of the present Appeal, the parties were referred to mediation before the Delhi High Court Mediation and Conciliation Centre. With the intervention of the learned Mediator, the parties arrived at a Settlement Agreement dated 16.04.2026. In the said settlement, both parties have unequivocally acknowledged that the essential ceremonies required for solemnization of a valid Hindu marriage, including Saptapadi and customary rites, were never voluntarily performed in accordance with law. The parties have also acknowledged that they never lived together as husband and wife after the alleged marriage ceremony.

32. It is true that matrimonial status cannot be altered merely on the basis of consent of parties and that the Court must independently satisfy itself regarding fulfillment of statutory requirements under the Hindu Marriage Act, 1955. However, where the material on record independently demonstrates absence of valid solemnization in accordance with Section 7 of the Act, coupled with circumstances showing absence of cohabitation, complete breakdown of the relationship from inception itself and allegations of coercion remaining substantially un rebutted, the Court would be justified in exercising jurisdiction under Section 12 of the Act.

33. Having considered the entirety of the material placed on record, this Court is of the considered view that the learned Family Court failed to correctly appreciate both the factual and legal position obtaining in the matter. The learned Family Court erred in relying upon the untested defence of the Respondent despite his failure to MAT.APP.(F.C.) 144/2025 15:20:36 subject himself to cross-examination and further failed to appreciate the legal consequences flowing from non-proof of essential ceremonies required for a valid Hindu marriage under Section 7 of the Hindu Marriage

Act, 1955.

34. This Court is further satisfied that the material placed on record, read in conjunction with the subsequent settlement arrived at between the parties, clearly establishes that the alleged marriage dated 16.01.2019 was never validly solemnized in accordance with the mandatory requirements of Hindu law and that continuance of such marital status would result in grave injustice to both parties.

35. Accordingly, the present Appeal is allowed. The Impugned Judgment and Decree dated 21.12.2024 passed by the learned Family Court in HMA No.1771/2019 is hereby set aside.

36. Consequently, the marriage between the parties purportedly solemnized on 16.01.2019 at Arya Samaj Sanatan Vaidik Sanskar Trust (Regd.), Rajinder Market, Tis Hazari, Delhi - 110054 is declared null and void and stands annulled.

37. In pursuance of the Settlement Agreement dated 16.04.2026, a Demand draft of Rs.2,00,000/- is handed over to the Respondent by the Appellant, both of whom are present in person before this Court, and the same is duly accepted by the Respondent in full and final settlement of all claims between the parties.

38. The parties shall remain bound by the terms and conditions of the Settlement Agreement dated 16.04.2026 and shall adhere to the undertakings recorded therein. The Settlement Agreement dated 16.04.2026 shall form part of the present Judgment.

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39. In view of the aforesaid settlement arrived at between the parties, all claims, allegations and disputes arising out of the present matrimonial relationship and the proceedings emanating therefrom shall stand fully and finally resolved.

40. In order to protect the privacy and dignity of the parties, particularly considering the nature of the matrimonial dispute, it is directed that the names and identities of the parties shall not be reflected in the judicial record and they shall instead be shown as "X Vs. Y".

VIVEK CHAUDHARY, J RENU BHATNAGAR, J MAY 18, 2026 ab/kp/tr MAT.APP.(F.C.) 144/2025 15:20:36